

First, class counsel repeats throughout the moving papers and counsel's declaration that to obtain email addresses and mailing addresses for class members, class counsel shall serve subpoenas on known third-party retailers. However, the timeline class counsel proposes for notice to the class (to be provided within 20 days of preliminary approval) does not appear to take into consideration the time necessary to serve subpoenas on third-party retailers and receive those records. Explanation is needed.

Second, plaintiff provides a declaration from the settlement administrator. However, the information provided as to how the settlement administrator provides incomplete information for how an address will be updated when a postcard is returned as undeliverable, as the settlement administrator states only it "will use reasonable efforts to identify a mailing address and mail a copy of the postcard notice to such address." (Schwartz Decl. para. 13.) Explanation as to what these reasonable efforts will be is needed.

Third, the moving papers and the settlement agreement make clear plaintiff requests court authorization for settlement administration costs not to exceed \$100,000. It appears from the Schwartz declaration that this amount includes the costs of maintaining the Settlement Call Center and the Settlement Website. (Schwartz Decl., ¶¶ 19, 20, 21, 23.) However, the language of the settlement agreement appears to indicate the website and call center costs would be separate and apart from the administration costs that are not to exceed \$100,000. Explanation is needed.

In light of these issues, the court on its own motion continues this motion to be heard on **June 30, 2026 at 8:30 a.m. in Department 42**. By June 16, 2026, plaintiff shall file and serve notice of continued hearing and supplemental declaration(s) to address the court's observations noted in this ruling.

5. S-CV-0050615 Temple, Laura v. Action Water Sports of Incline Village

Defendant is advised that the notice of motion must include notice of the court's tentative ruling procedures. (Local Rule 20.2.3(C).)

Defendant Action Water Sports of Incline Village, LLC's Motion for Summary Judgment, or in the alternative, Summary Adjudication

Plaintiff Laura Temple ("Plaintiff") seeks damages for severe injuries sustained when she was struck by a boat propeller while swimming near a rented motorboat on Lake Tahoe on or about August 4, 2020. Plaintiff alleges that defendant Action Water Sports of Incline Village, LLC ("AWS") and related rental defendants were negligent in renting and equipping the vessel, failing to provide adequate boating instruction, safety training, warnings, and equipment, and violating Nevada law. Plaintiff further contends that defendants Michael Goodwin ("Goodwin"), Zakaria Stour ("Stour"), Shawn Willette ("Willette"), and Brenda Poot ("Poot") negligently operated the vessel by placing it in reverse while she was in the water, causing the accident. AWS denies liability and on or about May 30, 2023 filed a cross complaint against Goodwin, Stour, Willette, and Poot

contending that any injuries were caused by the actions of those individuals rather than AWS. AWS seeks, through its cross claims, contractual indemnity, equitable indemnity, contribution, and declaratory relief, alleging that the boat renters and operators are responsible for any judgment, settlement, defense costs, or other liability arising from Plaintiff's claims.

On or about December 17, 2025, AWS filed the present motion for summary judgment, or in the alternative, summary adjudication ("Motion") as to Plaintiff's first and second causes of action. AWS argues it did not owe Plaintiff any duty to avoid the inherent risks of recreational boating and swimming when Plaintiff was injured, and therefore, Plaintiff cannot establish as a matter of law the element of duty required for her claims and the claims are barred. AWS also argues that Plaintiff is unable to demonstrate that AWS caused her alleged injuries, and thus, Plaintiff's first and second causes of action fail. Plaintiff opposes the Motion arguing that federal maritime law governs the accident and does not recognize primary assumption of the risk as a complete bar to recovery, and that triable issues of material fact exist regarding AWS's negligence, statutory violations, and whether its alleged failures in training, warnings, and equipment were substantial factors in causing Plaintiff's injuries.

Evidentiary Objections

AWS objects to evidence offered in support of Plaintiff's opposition to the Motion. Specifically, AWS submits objections to the deposition testimony of investigating officer Jake Kreamer. The court rules on these objections as follows:

Objection Nos. 1, 2, 3, and 5 are overruled, except that the court does not consider any inadmissible hearsay or legal conclusions embedded within the challenged testimony.

Objection No. 4 is sustained for lack of foundation.

Objections Nos. 6 and 7 are also sustained as the testimony proffered constitutes inadmissible legal conclusions and are not proper subjects of opinion testimony.

Legal Standard

A defendant moving for summary judgment bears the initial burden of demonstrating that one or more elements of a cause of action cannot be established or that a complete defense exists. (Code of Civil Procedure ("CCP") § 437c, subd. (p)(2).) Summary judgment is appropriate if "all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to summary judgment as a matter of law." (CCP § 437c, subd. (c).) Only if the defendant meets that burden does the burden shift to the plaintiff to demonstrate the existence of a triable issue of material fact. The court views the evidence in the light most favorable to the opposing party and resolves doubts in favor of that party. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 843.)

When a defendant moves for summary judgment based on primary assumption of risk, the defendant bears “the burden of establishing the plaintiff’s primary assumption of the risk by demonstrating that the defendant owed no legal duty to the plaintiff to prevent the harm of which the plaintiff complains.” (*Hamilton v. Martinelli & Associates* (2003) 110 Cal.App.4th 1012, 1020, quoting *Freeman v. Hale* (1994) 30 Cal.App.4th 1388, 1395.) The court must “determine whether the defendant has conclusively negated a necessary element of the plaintiff’s case or demonstrated that under no hypothesis is there a material issue of fact that requires the process of trial.” (*Bjork v. Mason* (2000) 77 Cal.App.4th 544, 548, quoting *Ann M. v. Pacific Plaza Shopping Center* (1993) 6 Cal.4th 555, 675-674.)

The primary assumption of risk doctrine operates as a complete bar to recovery because it eliminates the defendant’s duty of care entirely. As the California Supreme Court explained in *Knight v. Jewett* (1992) 3 Cal.4th 296, fn. 4, when the primary assumption of risk applies, “the defendant owes no duty to protect the plaintiff from an injury-causing risk.” This distinguishes primary assumption of risk from secondary assumption of risk, where a duty exists but the plaintiff knowingly encountered risks from the defendant’s breach. (*Harry v. Ring the Alarm, LLC* (2019) 34 Cal.App.5th 749, 758.) When no triable issues of material fact exist regarding whether the defendant’s conduct fell outside the limited duty not to act recklessly or intentionally, courts can resolve cases where primary assumption of risk applies on summary judgment because “turning as it does on the legal question of duty is particularly amenable to resolution by summary judgment.” (*Gregory v. Cott* (2014) 59 Cal.4th 996, fn. 7; *Patterson v. Sacramento City Unified School Dist.* (2007) 155 Cal.App.4th 821, 826.)

Discussion

A central issue in the parties’ submissions is whether federal maritime law governs Plaintiff’s claims. Plaintiff contends the accident occurred on navigable waters and arose from the operation of a recreational vehicle on Lake Tahoe, thereby invoking federal admiralty jurisdiction. AWS, on the other hand, argues the matter instead concerns the rental of a recreational vehicle used on a lake primarily devoted to recreation, and therefore, lacks a sufficient nexus to traditional maritime activity.

At this stage, the court is not persuaded that AWS has established, as a matter of law, that admiralty jurisdiction is unavailable. The United States Supreme Court in *Foremost Insurance Co. v. Richardson* (1982) 457 U.S. 668, established that admiralty jurisdiction may extend to recreational boating accidents on navigable waters, explicitly rejecting the requirement that the activity involve maritime commerce. The court held that a collision between two pleasure boats on navigable waters has a sufficient nexus to traditional maritime activity because “the federal interest in protecting maritime commerce cannot be adequately served if admiralty jurisdiction is restricted to those individuals actually engaged in commercial maritime activity” and “all operators of vessels on navigable waters are subject to uniform rules of conduct.” (*Id.* at p. 674-675.) Likewise, it appears that under the framework articulated in *Jerome B. Grubart, Inc. v. Great Lakes Dredge & Dock Co.* (1995) 513 U.S. 527, 534 admiralty jurisdiction exists where the alleged tort

occurs on navigable waters and bears a substantial relationship to traditional maritime activity.

Here, the alleged injury occurred during the operation of a motorboat on Lake Tahoe. Lake Tahoe has long been recognized by the Ninth Circuit as a navigable waterway of the United States. (*Davis v. United States* (1950) 185 F.2d 938, 939-940.) Additionally, vessel navigation appears to constitute a traditional maritime activity under the *Foremost* and *Grubart* cases.

AWS relies on the cases of *In re Blue Water Boating, Inc.* (9th Cir. 2019) 786 Fed.Appx. 793, an unpublished memorandum disposition, and *Matter of Branson Duck Vehicles, LLC* (W.D. Mo. 2019) 2019 WL 6352654, an unpublished federal district court decision, in support of its position that maritime law does not apply. Those authorities do not compel a different conclusion. In *Blue Water Boating*, the Ninth Circuit concluded that the rental of a stand-up paddleboard lacked a substantial relationship to traditional maritime activity because the alleged negligence did not implicate specialized concerns historically governed by maritime law. (*Blue Water Boating, supra*, 786 Fed.Appx. at pp. 704-705.) In contrast, in this instance, Plaintiff's claims arise from the operation and navigation of a motor vessel on navigable waters and a resulting propeller-strike injury. Similarly, *Branson Duck Vehicles* involved a district court's analysis of navigability and maritime commerce under circumstances materially different from those presented here. Neither decision appears to undermine the Supreme Court's holdings in *Foremost* and *Grubart* that recreational boating incidents involving vessel navigation on navigable waters may fall within admiralty jurisdiction.

To the extent that AWS argues that even if federal maritime law governs the dispute, California's primary assumption of risk doctrine may be applied as a supplemental rule of decision, the court agrees that maritime law does not invariably preempt all state law principles. (See *Wilburn Boat Co. v. Fireman's Fund Ins. Co.* (1955) 348 U.S. 310, 316, 321.) Nevertheless, even assuming California's primary assumption of risk doctrine may properly supplement maritime law in this context, AWS must still establish that there are no triable issues concerning whether it increased the risks inherent in the activity and whether its alleged conduct contributed to Plaintiff's injuries. The court concludes AWS has not made that showing.

Under California law, primary assumption of the risk relieves a defendant of a duty to protect participants from risks inherent in a recreational activity but does not bar liability where the defendant unreasonably increases the risks beyond those inherent in the activity. (*Knight, supra*, 3 Cal.4th at pp. 315-316; *Nalwa v. Cedar Fair, L.P.* (2012) 55 Cal.4th 1148, 1162.) AWS maintains Plaintiff's injuries resulted from an inherent risk associated with recreational boating and swimming near a vessel. Plaintiff, however, presents evidence from which a reasonable trier of fact could conclude AWS increased the risks associated with the activity. Specifically, Plaintiff presents evidence that AWS failed to adequately instruct participants regarding safe vessel operation, swimmer safety, and emergency procedures; failed to provide adequate warnings; rented the vessel

without an anchor; and failed to comply with statutory requirements governing the rental of motorboats.

Whether these alleged acts or omissions increased the risks beyond those inherent in recreational boating presents factual issues that cannot be resolved as a matter of law on summary judgment or adjudication. Accordingly, the court finds that AWS has not established that the primary assumption of risk constitutes a complete defense to Plaintiff's claims.

AWS argues in the alternative that Plaintiff cannot establish causation because Goodwin's operation of the boat constituted the sole cause of Plaintiff's injuries. Causation ordinarily presents a question of fact and may be resolved as a matter of law only where the undisputed facts permit but one reasonable conclusion. (*Kurini v. Hanna & Morton* (1997) 55 Cal.App.4th 853, 864) Plaintiff contends AWS's alleged failures in training, instruction, warnings, equipment, and statutory compliance contributed to the circumstances leading to the accident. Plaintiff has presented evidence by which a reasonable trier of fact could conclude that AWS's conduct and the conduct of the vessel operators concurrently contributed to Plaintiff's injuries. The existence of potential negligence on the part of Goodwin or others involved in operating the boat does not establish, as a matter of law, that AWS's conduct was not a substantial factor in causing the harm.

When viewing the evidence in the light most favorable to Plaintiff, the court finds triable issues remain as to whether AWS's alleged acts or omissions were a substantial factor resulting in Plaintiff's injuries.

Finally, AWS seeks adjudication of Plaintiff's claim under Nevada Revised Statute section 488.730. Here, plaintiff establishes that factual disputes remain regarding AWS's compliance with the statutory requirements governing motorboat rentals and whether any alleged noncompliance contributed to the accident. The court finds that these disputes preclude summary adjudication.

AWS's motion for summary judgment, or in the alternative, summary adjudication, is denied.

6. S-CV-0051371 Engineer, Cash v. Ashby, Kaitlyn Emily

If oral argument is requested, it will be heard on **June 16, 2026 at 8:30 a.m. in Department 42** by the Honorable Trisha J. Hirashima.

Petition for Approval of Minor's Compromise for Cash Engineer

Petitioner seeks costs of \$2,521.20 to be paid for out of the minor's gross settlement payment. Petitioner provides an invoice of costs as Attachment 13b which supports total costs of \$10,068.52. Attachment 13b also specifies that "total costs were split amongst the plaintiffs." It appears there are two problems here. First, as there are six plaintiffs in